

25LBCV01352 25LBCV01352

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-06-30

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Defendant moves for summary judgment on Plaintiff's complaint. Opposition to the motion was due at least 20 days prior to the hearing per CCP §437c(b)(2). 20 days prior to the hearing fell on 6/10/26.

On 6/11/26, Plaintiff filed untimely opposition papers, including a memorandum of points and authorities, request for judicial notice, separate statement and attorney declaration. The Court cannot locate proof of service of any of these documents. On 6/15/26, Plaintiff filed her own declaration in support of the opposition, as well as a proof of service showing she served her own declaration on Defendant on 6/13/26.

The Court refuses to consider the late-filed opposition. The Court notes a pattern and practice of filing untimely documents on the part of Plaintiff's attorney, which the Court will not tolerate. CRC 3.1300(d). This is particularly true where, as here, there is no proof of service of the majority of the opposition documents, and Defendant did not file timely reply papers (likely due to non-receipt of opposition papers).

Recently, in *Mandell-Brown v. Novo Nordisk Inc.* (2025) 109 Cal.App.5th 478, 508, the Court of Appeals considered a situation where a plaintiff failed to file an opposing separate statement prior to the hearing on the defendant's motion.

The Mandell-Brown Court noted, "Thus, if a plaintiff opposing summary

judgment fails to file a separate statement, and the trial court reviews the moving papers and concludes the motion is not deficient on its face, it has discretion under subdivision (b)(3) to grant the motion, without first undertaking a detailed analysis of the supporting evidence to determine if a prima facie showing has been made as to one or more of the elements of each claim."

The Court has reviewed the moving papers and finds they are not deficient on their face. In light of the lack of timely opposition and an opposing separate statement, the Court grants the motion.

Defendant is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.